

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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Jael Flores,

Plaintiff,

-against-

**FIRST AMENDED
COMPLAINT**

THE CITY OF NEW YORK, POLICE OFFICER TEDDY
DUROC, tax # 948926, POLICE OFFICER MARK
SANTIAGO, tax # 949619, JOHN AND JANE DOES 1-
10,

CV 11 5646 (BMC)

Jury Trial Demanded

Defendants.

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PRELIMINARY STATEMENT

1. Plaintiff brings this civil rights action against the City of New York and several New York City Police Officers in connection with two separate arrests, one occurring on April 18, 2011 in Brooklyn, and the other occurring on April 19, 2011 in Queens. Plaintiff alleges that defendants violated his rights under 42 U.S.C. § 1983, the Fourth and Sixth Amendments to the United States Constitution and New York state law by entering his home without a warrant or consent, falsely arresting him, using unreasonable force on him, illegally strip searching him and denying him a fair trial. Plaintiff seeks compensatory and punitive damages, attorney's fees and costs and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth and Sixth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide his New York state law claims of false arrest, assault, battery and vicarious liability which form part of the same case and controversy as his federal claims under Article III of the United States Constitution.

4. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391(b) and (c) because a substantial part of the events giving rise to plaintiff's claims occurred in this District and because some or all of the defendants reside in this District.

JURY TRIAL

5. Pursuant to Fed. R. Civ. P. 38, plaintiff demands a jury trial.

NOTICE OF CLAIM

6. With respect to plaintiff's state law claims, notices of claim were duly filed with the City of New York within 90 days of the incidents at issue, more than 30 days have elapsed since such filing and the City has not offered to settle plaintiff's state law claims.

PARTIES

7. Plaintiff is a resident of Brooklyn.

8. The City of New York is a municipal corporation organized under the laws of the State of New York

9. The individual defendants are members of the New York City Police Department ("NYPD"). The defendants were acting under color of state law and in their capacities as members of the NYPD at all relevant times. The defendants are liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. The defendants are sued in their individual capacities.

STATEMENT OF FACTS

A. Incident of April 18, 2011

10. On April 18, 2011, at approximately 9 00 p.m., plaintiff was the passenger in a car driven by a friend, Rashad Abdul.

11. Plaintiff and his friend were headed to the gym, Planet Fitness.

12. After the car exited the Jackie Robinson Highway in Brooklyn, approximately five police officers, including Officer Teddy Duroc of Patrol Borough Brooklyn North, stopped the car for no reason and falsely arrested plaintiff.

13. In the course of arresting plaintiff, two of the officers yanked plaintiff out of the passenger seat of the car, slammed him into the car, twisted his arms and handcuffed him excessively tight.

14. Several of the officers took turns searching plaintiff.

15. While searching plaintiff, two of the officers strip searched plaintiff by putting their hands inside his pants and underwear and feeling his penis and testicles.

16. A female officer arrived on the scene and took plaintiff to the 73rd Precinct.

17. While plaintiff was held in the precinct, Officer Duroc, with the approval and knowledge of the other defendants, falsely charged plaintiff with possession of marijuana.

18. Plaintiff was released from the precinct at approximately 12:30 a.m. with a summons falsely charging him with possession of marijuana.

19. When plaintiff went to court on June 27, 2011, at 346 Broadway in Manhattan, he was informed that the summons had been dismissed.

20. Plaintiff suffered damage as a result of defendants' actions. Plaintiff suffered an unlawful detention, physical injuries, emotional distress, fear, anxiety and humiliation.

B. Incident of April 19, 2011

21. On April 19, 2011, at approximately 5:00 p.m., two New York City Police Officers in plainclothes, including Officer Mark Santiago, entered plaintiff's home at 89-29 163rd Street in Jamaica, Queens without permission or a warrant and falsely arrested plaintiff while he was in the backyard.

22. Four uniformed officers of the 103rd Precinct were also on the scene and a sergeant or other superior officer handcuffed plaintiff painfully tight causing pain and bruising.

23. Plaintiff was taken to the 103rd Precinct.

24. A Latino officer in uniform with green eyes illegally strip searched plaintiff in the precinct.

25. Plaintiff was ordered to strip nude, squat, bend over, spread his buttocks and cough.

26. While plaintiff was held in the precinct, Officer Santiago, with the approval and knowledge of the other defendants, falsely charged plaintiff with possession of marijuana and resisting arrest.

27. In the evening, officers took plaintiff to Queens Central Booking.

28. On April 20, 2011, at approximately 3:00 p.m., plaintiff appeared before a judge and was released on his own recognizance

29. Plaintiff hired attorney Lance Lazzaro at a cost of approximately \$4,500.

30. On September 9, 2011, after plaintiff made several court appearances, the false charges were adjourned in contemplation of dismissal.

31. Plaintiff suffered damage as a result of defendants' actions. Plaintiff suffered an unlawful detention, physical injuries, emotional distress, fear, anxiety, humiliation and financial loss.

FIRST CLAIM

(FALSE ARREST)

32. Plaintiff repeats the foregoing allegations.

33. At all relevant times, plaintiff did not commit a crime or violation.

34. Despite plaintiff's innocence, the defendants arrested plaintiff or failed to intervene to prevent his false arrest.

35. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for false arrest.

SECOND CLAIM

(UNREASONABLE FORCE)

36. Plaintiff repeats the foregoing allegations.

37. Defendants' force upon plaintiff on April 18 and 19, 2011 was objectively unreasonable and caused plaintiff pain and injury.

38. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for using unreasonable force on him.

THIRD CLAIM

(ILLEGAL STRIP SEARCH)

39. Plaintiff repeats the foregoing allegations.

40. The strip searches of plaintiff on April 18 and 19, 2011 were illegal because plaintiff had not committed a crime and because no officer had reasonable suspicion to believe that plaintiff was hiding illegal items under his clothes.

41. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for illegally strip searching him.

FOURTH CLAIM

(DENIAL OF A FAIR TRIAL)

42. Plaintiff repeats the foregoing allegations.

43. In connection with the arrest of plaintiff on April 19, 2011, defendants misrepresented to the Queens County District Attorney's Office that plaintiff had committed a crime.

44. Defendants' misrepresentations deprived plaintiff of liberty in that he was required to make numerous court appearances after his arraignment.

45. Accordingly, defendants are liable to plaintiff under the Sixth Amendment for denying him a fair trial.

FIFTH CLAIM

(UNLAWFUL ENTRY OF HOME)

46. Plaintiff repeats the foregoing allegations.

47. Defendants entered plaintiff's home without a warrant or consent on April 19, 2011.

48. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for unlawful entering his home.

SIXTH CLAIM

(FAILURE TO INTERVENE)

49. Plaintiff repeats the foregoing allegations.

50. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

51. Accordingly, defendants are liable to plaintiff under the Constitution for not intervening to prevent the violation of plaintiff's rights.

SEVENTH CLAIM

(*MONELL* CLAIM AGAINST THE CITY OF NEW YORK)

52. Plaintiff repeats the foregoing allegations.

53. The City of New York is a "person" within the meaning of 42 U.S.C. § 1983.

54. The City of New York, through a policy, practice or custom, directly caused the constitutional violations suffered by plaintiff.

55. Upon information and belief, the City of New York, at all relevant times, was aware that the defendants and other members of the NYPD are unfit officers who have previously committed acts similar to those alleged herein, have a propensity for unconstitutional conduct and/or have been inadequately trained.

56. Several members of the NYPD have been arrested and convicted of crimes for making false allegations and for corruption.

57. Former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state court and served time in federal prison.

58. In 2011, former NYPD Officer Jerry Bowen was convicted of murder and attempted murder while under indictment for corruption.

59. In October 2011, former NYPD narcotics officer Jason Arbeeney was convicted in New York Supreme Court, Kings County, of planting drugs on two individuals and falsifying arrest reports. Before issuing a verdict of guilty, the judge scolded the NYPD for what he described as a “widespread culture of corruption endemic in its drug units.” The judge further stated that the testimony demonstrated that the NYPD narcotics divisions maintain a “cowboy culture” and that he was “shocked, not only by the seeming pervasive scope of misconduct but even more distressingly by the seeming casualness by which such conduct is employed.”

60. In *Colon v. City of New York*, Nos. 09 CV 8, 09 CV 9 (JBW), 2009 WL 4263362 (E.D.N.Y. November 25, 2009), the federal court stated that an “[in]formal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department.”

61. Despite the above, the City exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline and monitor the defendants and other officers like them.

62. The City’s failure to act resulted in the violation of plaintiff’s constitutional rights as described herein.

EIGHTH CLAIM

(FALSE ARREST UNDER STATE LAW)

63. Plaintiff repeats the foregoing allegations.

64. At all relevant times, plaintiff did not commit a crime or violation.

65. Despite plaintiff's innocence, the defendants arrested plaintiff or failed to intervene to prevent his false arrest.

66. Accordingly, the defendants are liable to plaintiff under New York state law for false arrest.

NINTH CLAIM

(ASSAULT)

67. Plaintiff repeats the foregoing allegations.

68. Defendants' force upon and searches of plaintiff on April 18 and 19, 2011 placed him in fear of imminent harmful and offensive physical contacts which injured him.

69. Accordingly, defendants are liable to plaintiff under New York state law for assault.

TENTH CLAIM

(BATTERY)

70. Plaintiff repeats the foregoing allegations.

71. Defendants' force upon and searches of plaintiff on April 18 and 19, 2011 were offensive and nonconsensual physical contacts which injured him.

72. Accordingly, the defendants are liable to plaintiff under New York state law for battery.

ELEVENTH CLAIM

(VICARIOUS LIABILITY CLAIM AGAINST CITY OF NEW YORK)

73. Plaintiff repeats the foregoing allegations.

74. The individual defendants were acting within the scope of their employment as members of the NYPD when they falsely arrested, assaulted and battered plaintiff.

75. Accordingly, the City of New York is vicariously liable to plaintiff under New York state law for false arrest, assault and battery.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Attorney's fees and costs;
- d. Such other and further relief as the Court may deem just and proper.

DATED: February 22, 2012

/s/

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